



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: UDC-21-00126 Bison Business Park, 2nd Filing Zone Change
Date: May 10, 2021

Staff Petition:

City Staff hearby petitions the Governing Body to change the zoning of Lot 1, Block 1, Bison Business Park, 2nd Filing (the WYDOT parcel) to LI Light Industrial.

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 5/10/2021
- Public Services Committee 5/18/2021
- Second reading 5/24/2021
- Public Services Committee 6/8/2021
- Third and final reading 6/14/2021

Related Items:

- Bison Business Park, 2nd Filing Annexation (UDC-21-00125)
- Bison Business Park, 2nd Filing Final Plat (UDC-21-00127)

Planning Commission Recommendation:

The Planning Commission heard this item at their May 3, 2021 meeting and **unanimously** recommended the Governing Body approve this application, with the modification that the WYDOT parcel be zoned LI.

The Planning Commission Staff report is attached and has not been changed, with the exception of the zone change map, which has been updated to reflect the WYDOT parcel being zoned LI.

Attachments:

1. Ordinance
2. Planning Commission Staff Report with updated zone change map

ORDINANCE NO. _____

ENTITLED: “AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM COUNTY A-2 AGRICULTURAL TO AG AGRICULTURAL, LI LIGHT INDUSTRIAL, AND HI HEAVY INDUSTRIAL FOR LAND LOCATED EAST OF SOUTH GREELEY HIGHWAY (US 85), NORTH OF CHALK BLUFF ROAD.”

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein (with the exception of the property owned by Wyoming Department of Transportation) have applied for a zoning map amendment (“zone change”) for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 2. That City staff has petitioned City Council for a zoning map amendment (“zone change”) for the property owned by the Wyoming Department of Transportation on said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code (“UDC”).

Section 3. That on May 3, 2021, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zone change that is the subject of this ordinance, and recommended approval of said zone change.

Section 4. That the Governing Body of the City of Cheyenne finds that the zone change that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 5. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved and the zoning classification of the real property described as Lot 1, Block 2, Lot 1, Block 3, and Lot 2, Block 4, Bison Business Park, 2nd Filing is hereby changed to AG Agricultural; ; the zoning classification of the real property described as Lots 1 and 2, Block 1, Bison Business Park, 2nd Filing is hereby changed to LI Light Industrial; and the zoning classification of the real property described as Lot 1, Block 4, Bison Business Park, 2nd Filing is hereby changed to HI Heavy Industrial.

Section 6. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zone change as described in Section 4 above when this ordinance takes effect in accordance with Section 8 below.

Section 7. Sections, paragraphs, sentences, clauses and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 8. That this ordinance shall be in full force and effect upon its approval and publication, and upon the official filing of the affiliated Bison Business Park, 2nd Filing final plat map with the County Clerk and Ex-Officio Register of Deeds for Laramie County, Wyoming.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)
ATTEST:

KRISTINA F. JONES, CITY CLERK

publish date: _____



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001

(Phone) 307-637-6282 (Fax) 307-637-6366

CITY OF CHEYENNE PLANNING COMMISSION

MAY 3, 2021

STAFF REPORT

FILE: UDC-21-00126: Bison Business Park, 2nd Filing Zone Change

REQUEST: A request to rezone approximately 351.2 acres of land from County A-2 Agricultural to AG Agricultural, LI Light Industrial, HI heavy Industrial, and P Public District in concert with an annexation

LOCATION: East of South Greeley Highway (US 85), north of Chalk Bluffs Road

AGENT: Brad Emmons, AVI, PC

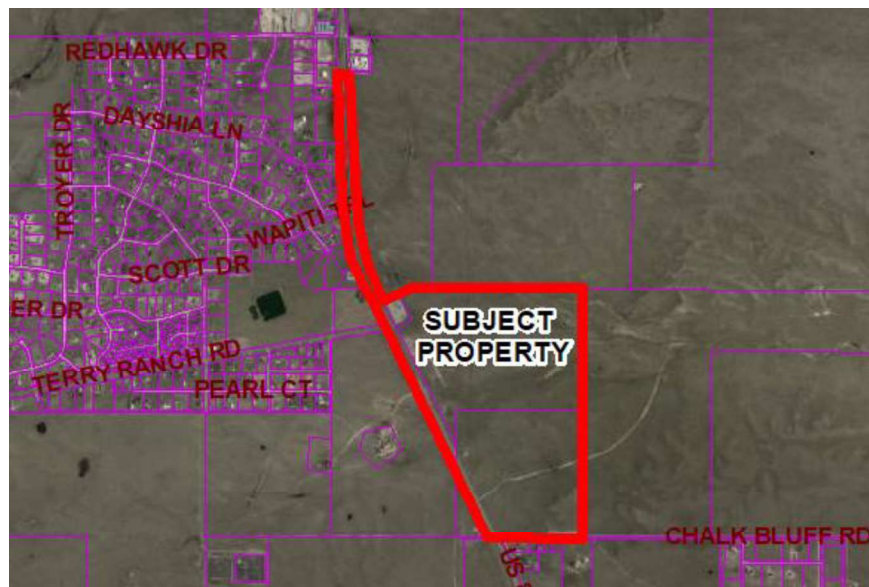
OWNER: Arp and Hammond Hardware Company, Lummis Livestock Company, LLC, and Wyoming Department of Transportation

ZONING: County A-2 Agricultural

FUTURE LAND USE: Industrial

PURPOSE: To give land City zoning in concert with annexation.

PREPARED BY: Seth Lloyd, Planner II - Development



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lots 1 and 2, Block 1, Bison Business Park, Second Filing to LI (Light Industrial); Lot 1, Block 4, Bison Business Park, Second Filing to HI (Heavy Industrial); and Lot 1, Block 2, Lot 1 Block 3 and Lot 2, Block 4, Bison Business Park, Second Filing to AG (Agricultural) as shown in the attached zone change map, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from County A-2 Agricultural to AG Agricultural, LI Light Industrial, HI heavy Industrial, and P Public District for 351.2 acres of mostly vacant land in concert with an annexation. The land is anticipated to be developed in the future with industrial-style uses and associated streets.

Staff notes that they have prepared a “Staff Modified Zone Change Map” which is attached to this staff report.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning	Land Use
Subject Site	Industrial (recently changed)	County A-2	Undeveloped, Port-of-entry
North	Industrial (recently changed)	AG, HI (recently annexed and changed)	Undeveloped
South	Agricultural/Rural	<unzoned area>	Rural residential, Undeveloped
East	Agricultural/Rural	County A-2	Undeveloped
West	Urban Transition Residential	County A-2	Undeveloped

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

PlanCheyenne encourages growth within the Urban Service Boundary and the maximization of existing infrastructure. This property is within the Urban Service Boundary, as recently modified by a recent update to the Future Land Use Map. Infrastructure does not currently exist in the area and development will require significant infrastructure extensions and improvements.

The Future Land Use Designation for this property is Industrial (also updated with the recent change to the Future Land Use Map). The optimal zoning for the proposed future land use designation is LI Light Industrial or HI Heavy Industrial.

While the proposed AG zone is not consistent with the land uses identified by the Future Land Use Map, the AG zone is the rough equivalent of the current County zone and would not have an adverse effect on the potential for the property to develop in accordance with the plans and policies of the comprehensive plan in the future.

The P Public District is intended for public entities providing government services. The property proposed to be zoned P Public District is currently used by the Wyoming Department of Transportation and would be required to be rezoned in the event of a land transfer. Staff recommends this be zoned LI (Limited Industrial) Zone district for consistency with nearby zoning and to reflect the highly truck-oriented services at the site. Zoning this LI will not require park fees (since it is a government use) and will not subject structures on the land to design standards.

The proposed zone change **complies** with review criterion 1.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

To the south, this property borders land outside the zoned area. To the east and west, the existing zoning is mostly AR and outside of City limits. The property to the north is zoned AG and HI within City limits (a recently-approved change). The current zoning of the subject property is AR, and the AG zone is the City zone most analogous to the current county zone.

The future land uses anticipated by the Comprehensive Plan for this area anticipate higher-intensity, industrial uses. The LI and HI zones are the expected zoning designations for this type of development and are compatible with the long-range plan for the area. While the proposed AG zone is not consistent with the Future Land Use Map, the AG zone is intended to be able to be used as a 'holding zone' until future development occurs, and the proposed AG zone is consistent with existing County zoning in the area.

The proposed zone change for the subject property **complies** with review criterion 2.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The current County AR zone allows limited development options and is intended for low-intensity uses. Generally, parcels in this zone district are not expected to connect to urban services. The proposed AG zone is the City zone most analogous to the current County zone and also only allows limited development options. The proposed LI and HI zones allow higher-intensity industrial uses, but are expected to develop with access to City infrastructure. Development of the property will require significant extension of infrastructure.

The proposed zone change **complies** with review criterion 3.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

The standards of Article 4 have limited applicability to areas designated Industrial by the Future Land Use Map, and also limited in applicability to areas zoned AG. Minimum right-of-way widths and minimum street sections would still apply and would be reviewed with specific development actions.

The proposed zone change for the subject property **complies** with review criterion 4.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The HI zone is intended for uses of very high intensity which should be isolated and buffered in order to protect the community. Because the uses and site design can produce impacts beyond the property lines, the district should be located in more remote areas. It is appropriate near major regional transportation infrastructure and areas designated Industrial by the Future Land Use Map.

The LI zone is intended for controlled manufacturing or intensive employment uses that may have accessory commercial, service or office uses, but which cannot readily fit into other general business or mixed-use areas due to the nature or intensity of operations. The LI district is applicable to larger areas that are capable of providing substantial buffers.

The AG zone is intended to develop with primarily agricultural uses or to leave land in a natural state. This zone prohibits most of the typical urban-style uses. The AG zone is applicable to areas where significant natural lands or open spaces are to be protected, or areas designated Agriculture/Rural or Rural Residential by the Future Land Use Map. The AG zone is also applicable as an interim or holding zone for areas that may be further developed in the long term, but where minimal development activity in the interim is acceptable and will not prematurely establish development patterns.

This property is anticipated to develop with industrial uses in the future and the proposed HI and LI zones are appropriate and applicable in this location. The AG zone is applicable as a holding zone and is intended to leave the land in an undeveloped state – which would allow future rezoning and development of the property when development is appropriate. None of these three proposed districts have zone-specific design regulations.

The P Public District is intended for governmental facilities serving the public. The parcel proposed to be zoned P is owned by the Wyoming Department of Transportation and is used as a Port-of-entry. The current ownership and use of the property makes P zoning acceptable, but as noted earlier in this staff report, staff believes LI is most appropriate for the WYDOT lot.

The proposed zone change for the subject property **complies** with review criterion 5.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any

specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The applicant is seeking the proposed zone change in concert with an annexation. The proposed HI and LI zoning does not have zone-specific design standards beyond setback requirements, and the parcels proposed to be zoned LI and HI are large enough to allow development to meet the setback requirements. The proposed AG zoning is the zone most similar to the existing zoning on the property and on surrounding County properties. Development on the property zoned AG would require a future rezoning.

While a specific development is proposed on the land to be zoned HI, the remainder does not currently have a development proposal. Should the specific development proposed for the HI parcel not be executed after the zone change is complete, the site is large enough to allow a variety of potential industrial uses.

The proposed zone change **complies** with review criterion 6.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

City Staff's analysis is that the existing WYDOT facility may be served just as well by being zoned LI or HI, such a facility is not required to be zoned P. The LI or HI zone would make zoning more consistent, require less design and landscaping considerations for future development, and allow the redevelopment or re-use of the property without a zone change. As noted earlier in this staff report, staff believes LI is most appropriate for the WYDOT lot (Lot 1, Block 1).

No other reviewing agencies provided recommendations regarding the proposed zone change.

The proposed zone change for the subject property **complies** with review criterion 7.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with review criterion 8.

CONFORMANCE WITH APPLICABLE PLANS:

The project is in an area covered by the following plans:

- PlanCheyenne

The application conforms to PlanCheyenne per the discussion with Review Criterion 1.

STAFF REVIEW:

Through the review process, no issues were identified by staff, and no comments regarding the proposed zone change were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The zoning map amendment application is proposed in concert with an annexation. The LI and HI zones are appropriate based on the future land use designation for the subject property, and the AG zone is the zone most analogous to the current County zone for the subject property. Staff notes that as discussed in this staff report, staff recommends that Lot 1, Block 1 (WYDOT's lot) be zoned LI. As recommended by staff, the rezoning application still meets the review criteria for approval.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant.
2. Recommend approval of the zoning amendment subject to conditions or modifications. (**Staff Recommendation**).
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

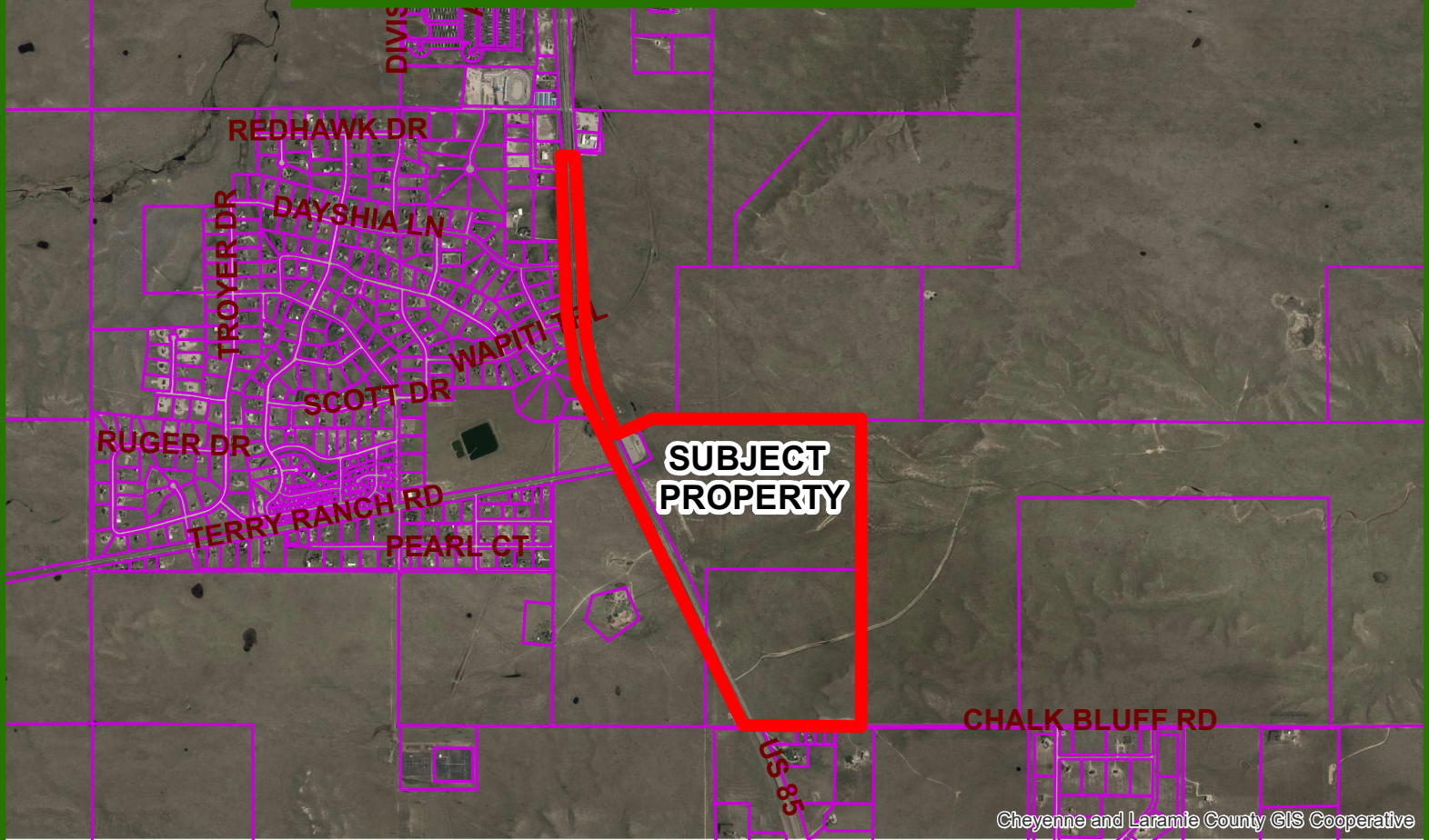
Staff recommends approval of the rezoning of the property from County AR to LI, HI, and AG subject to the following modification:

1. Lot 1, Block 1 (WYDOT's lot) be zoned LI (Light Industrial) zone district.

ATTACHMENTS:

1. Aerial, Future Land Use Plan, and Current Zoning Map
2. Master Application
3. Staff Modified Zone Change Map
4. Applicant Provided Zone Change Map

Bison Business Park, 2nd Filing Zone Change and Plat



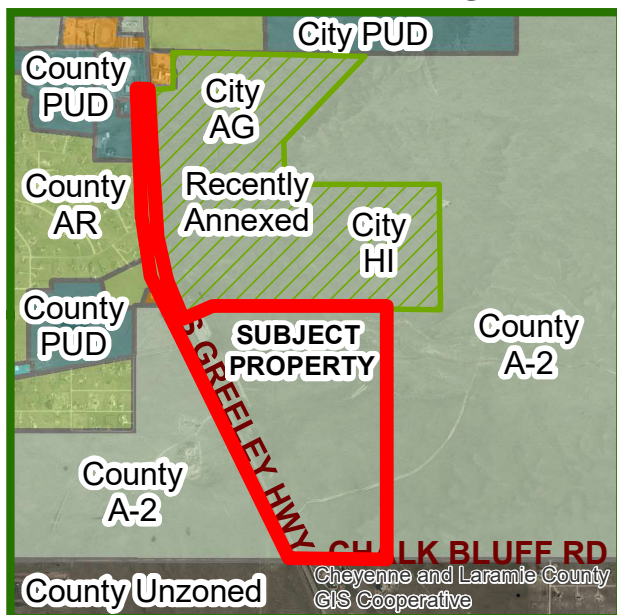
Cheyenne and Laramie County GIS Cooperative

Application Number
Zone Change and Plat
UDC-21-00126
UDC-21-00127

Agent: AVI, PC
Brad Emmons
Owners: Lummis Livestock Co
Arp and Hammond Hardware Co

0 3,000 6,000
Feet
Scale applies to above map only

Current Zoning

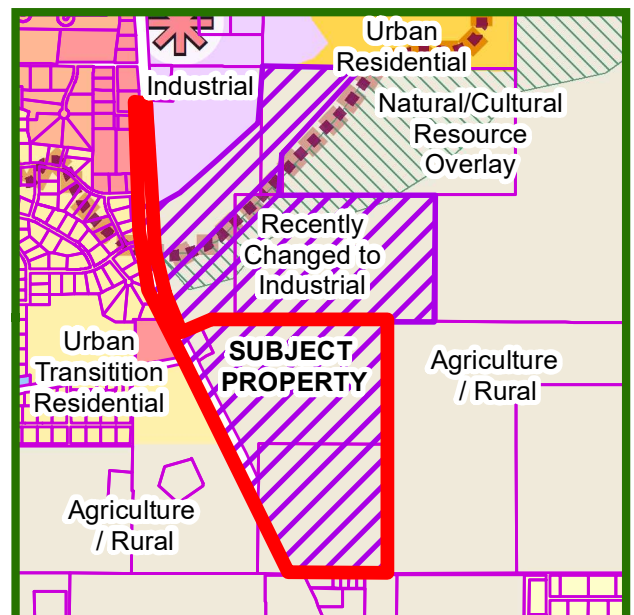


Cheyenne and Laramie County
GIS Cooperative



This map is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data.

Future Land Use



Planning and Development: Zoning Map Amendment Application

Submission date: **31 March 2021, 4:27PM**
Receipt number: **15**
Related form version: **9**

General Information

Applicant Name: **Betsey Hale, Cheyenne LEADS**

Applicant Address: **121 W 25th Street, Suite 304**

Applicant City: **Cheyenne**

Applicant State: **WY**

Applicant Zip Code: **82009**

Applicant Phone: **307-638-6000**

Applicant Email: **betseyh@cheyenneleads.org**

Representative Name: **Brad Emmons, AVI pc**

Representative Address: **1103 Old Town Lane, Suite 101**

Representative City: **Cheyenne**

Representative State: **WY**

Representative Zip Code: **82009**

Representative Phone: **307-637-6017**

Representative Email: **emmons@avipc.com**

Owner Name: **Doran E Lummis - Arp and Hammond Hardware Co
and Lummis Livestock Co**

Owner Address: **1825 Campstool Road**

Owner City:	Cheyenne
Owner State:	WY
Owner Zip Code:	82007
Owner Phone:	307-630-3186
Owner Email:	d3lummis@gmail.com
Who is the primary contact regarding this application?	Representative
Letter of Authorization	Letter of Authorization.pdf
Project Location (Street Address or General Location):	A portion of Sections 32 and 33, Township 13 North, Range 66 West of the 6th P.M. Laramie County Wyoming
Assessor's Parcel ID number(s)	R0065325, R0062974
Total Project Area	362.44 AC
Existing Zoning	Other: County A-2
Requested Zoning	AG - Agricultural LI - Light Industrial HI - Heavy Industrial P - Public

Application-Specific Questions

Written Statement	Zone change from County A-2 to City AG, P, HI and LI
Zoning Map	4435 ZONE CHANGE 2ND SUBMIT 3-31-21.pdf
Notification Letter	Bison Business Park 2nd Zone Change Notification_.docx Bison BP adjoiners.xlsx
Supporting Documents / Information	4435 ZONE CHANGE 2ND SUBMIT 3-31-21.pdf

Review Criteria

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan.

Acknowledgement of this review criteria

The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas.

Acknowledgement of this review criteria

The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district.

Acknowledgement of this review criteria

The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning.

Acknowledgement of this review criteria

The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards.

Acknowledgement of this review criteria

The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval.

Acknowledgement of this review criteria

The review and recommendations of other reviewing bodies

Acknowledgement of this review criteria

Whether the application will harm the public health, safety, or general welfare.

Acknowledgement of this review criteria

Signature / Certification

Applicant Signature

Name of signatory: Brad Emmons



[Uploaded signature image: brad emmons.jpg](#)

Please enter an email address for an email receipt.

emmons@avipc.com

